

		complete the document from the dashboard view alone; the employee must first open the document itself.” (ROA, Declaration of Kyle Johnson, ¶ 7.) This testimony, along with the other evidence Defendant submitted, establishes the requisite notice to find that Plaintiff assented to the Arbitration Clause. D. The Arbitration Clause is Enforceable pursuant to <i>Armendariz v. Foundation Health Psychcare Services, Inc.</i> (2000) 24 Cal.4th 83 The Court finds that the Arbitration Clause is binding and enforceable. The Court finds that the Arbitration Clause meets the requirements set forth in <i>Armendariz v. Foundation Health Psychcare Services, Inc.</i> (2000) 24 Cal.4th 83, 102, which holds that an <u>employment</u> arbitration agreement is lawful and therefore enforceable if it “(1) provides for neutral arbitrators, (2) provides for more than minimal discovery, (3) requires a written award, (4) provides for all of the types of relief that would otherwise be available in court, and (5) does not require employees to pay either unreasonable costs or any arbitrators’ fees or expenses as a condition of access to the arbitration forum.” (<i>Armendariz v. Foundation Health Psychcare Services, Inc.</i> (2000) 24 Cal.4th 83, 102.) Given the above, the Motion to Compel Arbitration is GRANTED and the action is STAYED. The Court finds that the declaration of Kyle Johnson and the testimony contain therein are admissible. Plaintiff’s objections to such testimony is OVERRULED. The Court sets an ADR Review hearing for <u>February 11, 2027 at 10:30 am in C34</u>. The <u>Discovery Motions</u> scheduled are OFF CALENDAR AS MOOT given the Court’s order compelling arbitration. Moving party to give notice.
11.	30-2024-01390718 Chavez vs. General Motors, LLC	1. Motion for Summary Judgment and/or Adjudication 2. Motion for Summary Judgment and/or Adjudication Defendant General Motors LLC (“Defendant”) filed a motion for summary judgment as to all five causes of action alleged in the Complaint, which includes the: (1) first cause of action for violation of Civil Code section 1793.2(d), (2) second cause of action for violation of Civil Code section 1793.2(b), (3) third cause of action for violation of Civil Code section 1793.2(a)(3), (4) fourth cause of action for breach of the implied warranty of merchantability pursuant to Civil Code sections 1791.1, 1794, and 1795.5, and (5) fifth cause of action for violation of the Magnuson-Moss Warranty Act. Plaintiff Ernesto Everardo Chavez (“Plaintiff”) opposed the motion. The Motion is CONTINUED TO August 20, 2026 at 1:30pm. <i>The Court is unable to read the Exhibit A to the motion for summary judgment</i>, which is the Dealer’s Reassignment of Title and Retail Purchase Agreement showing the sale of a used model 2020 Chevrolet Silverado 1500, VIN: 3GCPYBEH0LG401310 (the

	“Silverado”), by Vroom, located in Texas (as Seller-Creditor) to Ernesto Evertado Chavez (as Buyer) on January 22, 2021. Defendant is ORDERED to file a more legible copy of this agreement no later than 9 court days before the continued hearing. No further briefing. Defendant to give notice.
--	---